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CASE #	CASE NAME	HEARING NAME
CVPS2302950	REAL ADVANTAGE TITLE INSURANCE COMPANY VS BARKER	MOTION TO QUASH SUBPOENAS

Tentative Ruling:

Moving party: Non-parties, Tempo Title, LLC and Orange Coast Title Company

Responding party: Defendant, Janice Barker, Special Administer of the Estate of Michale Barker, Deceased ("Defendant")

Non-parties, Acrisure Real Estate Services and Orange Coast Title Company move to quash Defendant Barker's Subpoenas served upon them which demand the non-parties to appear for deposition and to produce records. Non-parties contend that the subpoenas should be quashed for the following reasons: (1) the subpoenas are an improper attempt to circumvent this Court's June 26, 2026 ruling declining to order production of the same categories of documents from Plaintiffs; (2) the subpoenas seek information that is not relevant to the subject matter of this action and are an impermissible fishing expedition premised on conjecture; (3) the discovery sought is unreasonably cumulative and duplicative of party discovery and is obtainable, if at all, from the parties; (4) the subpoenas invade the constitutional privacy rights of non-party individual and seek confidential, commercially sensitive information; and (5) the subpoenas are overbroad, unduly burdensome, and oppressive.

The instant motion, along with Defendant's motion to compel Rich Macaluso to answer deposition questions and production of document, are scheduled for a concurrent hearing set for September 8, 2026.

This is an action to enforce an indemnity agreement to recover damages which Plaintiffs allege to have suffered as a result of their settlement with a third party, Bobs LLC ("Bobs"), in a separate underlying action (CVPS2101103, "Bobs lawsuit"). The settlement obligated RATIC and OCTCSC to pay Bobs \$10.5 million. By way of this action, Plaintiffs are now seeking to be indemnified for their liabilities under the settlement and to recover their defense cost in the Bobs lawsuit pursuant to a 2019 indemnification agreement signed by Defendant Barker as the indemnitor. The case is now scheduled for a phase 1 jury trial on October 2, 2026.

At the heart of the non-parties' challenge to the subpoenas is a Security Purchase Agreement ("SPA") by which the decision makers of Plaintiffs transferred their interest in Orange Coast family of title and escrow companies to Acrisure in 2022, including shares of Plaintiff OCTSC's parent company. In a prior deposition of Mike Marconi, one of the decision makers of Plaintiffs, Defendant learned about the SPA's provision which purportedly imposed obligations on the decision makers to undertake liability of a bucket of 20 pending lawsuits, including Plaintiffs' defense and settlement in the Bobs litigation, that was above a stated \$ 6 million liability threshold. Defendant is asserting that RATIC paid all of the settlement and defense cost of both RATIC and

OCTCSC as the decision makers were motivated to allocate all financial responsibility from the Bobs settlement to RATIC to avoid personal obligations imposed against them under the SPA to pay any liability of OCTSC beyond the threshold of \$6 million and sought to be reimbursed from payment sources available to RATIC but not OCTCSC, including the indemnification agreement signed by Defendant.

On or about July 15, 2026, Defendant issued and served two subpoenas consisting of 12 topics and 14 categories of documents as to Acrisure and 12 topics and 13 categories of documents as to Orange Coast Title Company, which non-parties contend track, in many cases verbatim the demands which this Court has already denied on June 26, 2026. These categories include the SPA, board minutes, defense-fee payment and accounting records, settlement-payment and reimbursement records, and the SPA's \$6 million threshold, and "any and all" communications or documents "relating to" the entire Bobs action. Non-parties argue that the Court's June 26th ruling denied Defendant's demand for many of the categories of documents which Defendant is seeking from non-parties, finding that Defendant had not shown good cause for the SPA or board minutes and the payment categories were moot. Non-parties contend that Defendant did not seek reconsideration or writ review of that ruling but is now attempting to circumvent the Court's June 26th ruling through the demands in the subpoenas. Non-parties also argue that, aside from the June 26th ruling, the subpoenas are impermissible fishing expedition premised on a conjecture that the SPA or the non-parties' records would reveal how the liabilities for the Bobs action as between RATIC and OCTSC were allocated.

In opposition, Defendant contends that the motion should be denied as the subpoenas pertain to one of three categories which are relevant to this action: (1) the decision makers' personal liability and motive for allocating all liability to RATIC; (2) Acrisure's accounting of defense fees originally paid by OCTSC and later paid by RATIC to manufacture a claim under the indemnity; and (3) documents describing the Bobs' litigation to demonstrate they differ from the characterization of the litigation Plaintiff intend to present at trial. (See Declaration of Randall Manvitz ["Manvitz Decl."], ¶ 27, Exs. 13-14.) Defendant argues that the Court's June 26th ruling did not deny Defendant's ability to seek discovery of these categories.

The motion is Denied.

Analysis

I. Legal Standard.

The procedures available to obtain documents from a nonparty are the "records only" and "records and testimony" deposition subpoenas. (*Monarch Healthcare v. Superior Court* (2000) 78 Cal.App.4th 1282, 1287.) "A deposition subpoena which seeks only business records simply allows a party to obtain these records without the formality of requiring the testimony of the custodian. [Citation.]" (*Naswer v. Lakeridge Athletic Club* (2014) 227 Cal.App.4th 571, 577, internal quotation mark omitted.) A deposition subpoena that commands the production of business records for copying must

designate the business records to be produced either by: “Specifically describing each individual item” or “reasonably particularizing each category.” (Code Civ. Proc., §2020.410(a).) “Generalized demand, insupportable by evidence showing at least the potential evidentiary value of the information sought, are not permitted.” (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 218 [motion to compel production of business record from a nonparty].) Although the section of the Discovery Act (former section 2020 of the Code of Civil Procedure) contains no specific requirement for a party seeking production of document from a nonparty to “set forth specific facts showing good cause justifying the discovery sought,” as it is required for compelling document production from a party (Code Civ. Proc., §2031.310), the court in *Calcor Space* noted that “since it is unlikely the Legislature intended to place greater burdens on a nonparty than a party to the litigation, we read a similar requirement into [Section 2020].” (*Id.* at 224.)

A motion to quash the subpoena may be filed pursuant to Code of Civil Procedure section 1987.1. Under section 1987.1, where a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, the court, upon motion reasonably made by any person, “or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, directing compliance with it upon those terms and conditions as the court shall declare, including protective orders.” (Code Civ. Proc., § 1987.1(a)&(b)(2).)

II. Procedural defects in service.

Non-parties argue that the subpoenas were not properly served to them because it was delivered to their agent for process of service, CSC-Lawyers Incorporating Service. The Court rejects this argument.

A subpoena must be served by personal delivery to the deponent in accordance with subdivision (b) of Code of Civil Procedure section 2020.220, which provides that “[i]f the deponent is a natural person,” the subpoena is to be delivered “to that person,” and [i]f the deponent is an organization, to any officer, director custodian of records, or to *any agent* or employee authorized by the organization to accept service of a subpoena.” (Code Civ. Proc., § 2020.220(b)(1)&(2), italics added.) Here, non-parties provide no supporting evidence that agent for process of service was not authorized to accept service of a subpoena.

III. The motion is denied.

Non-parties seek to quash the subpoenas served upon them on multiple grounds, including that (1) the subpoenas are an improper attempt to circumvent this Court’s June 26, 2026 ruling declining to order production of the same categories of documents from Plaintiffs; (2) the subpoenas seek information that is not relevant to the subject matter of this action and are an impermissible fishing expedition premised on conjecture; (3) the discovery sought is unreasonably cumulative and duplicative of party discovery and is obtainable, if at all, from the parties; (4) the subpoenas invade the constitutional privacy rights of non-party individual and seek confidential,

commercially sensitive information; and (5) the subpoenas are overbroad, unduly burdensome, and oppressive. These grounds do not warrant an order quashing the subpoena.

First, non-parties' contention that the categories of matters and production which Defendant is seeking through the subpoenas were already denied by this Court is misguided. The Court's June 26th ruling did not deny a request for production relating to the SPA and Board minutes. The Court declined to allow production of such documents related to these matters, noting that it was unclear whether the previous RFP were reasonably particularized to be inclusive of these documents and that good cause of the production must be independently shown. (Tentative Ruling dated June 26, 2026, pg. 3.) Regardless, the fact production was denied under an RFP does not prohibit a party from seeking discovery of the same production through other authorized methods of discovery as "[n]othing in either ...[Code Civ. Proc., §§ 2025.010 et seq. or 2031 et seq.] suggest that seeking documents under on statutory procedure bars a litigant from seeking the same documents under the other." (*Carter v. Superior Court*) (1990) 218 Cal.App.3d 994, 997.) Hence, non-parties' contention that the discovery sought is unreasonably cumulative and duplicative of party discovery is also unpersuasive.

Furthermore, non-parties' provide no evidence to support the objection that the subpoenas are overbroad, unduly burdensome, and oppressive. An objection based on burden "must be sustained by evidence showing the quantum of work required, while to support an objection of oppression there must be showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought." (*West Pico Furniture Co. of Los Angeles v. Superior Court* (1961) 56 Cal.2d 407, 417-418 [declaration by manager that search of 78 branch offices would be required was insufficient because no estimate was made of the total man hours required to accomplish the task].) As such, non-parties fail to justify this objection.

Furthermore, the contention that the information demanded in the subpoenas are not relevant is without merit. It should be noted no copies of the subpoenas were presented with the motion; non-parties only generally describe the categories mentioned in the subpoenas as confidential business matters related to the 2022 SPA and payment records but do not identify the specific categories or topics they are contesting. But copies were attached as Exhibits 13 and 14 to the declaration of Defendant's counsel, Randall Manvitz, submitted in support of the opposition. In summary, the two near identical subpoenas seek testimony and production relating to (1) the SPA; (2) any document communication non-parties received relating to the Bobs' lawsuit concerning allocation of liabilities between the two Plaintiffs and Orange Coast Title Company; (3) any document or communication relating to percentage non-parties, OCTC, OCTSC, RATC should pay for defense fees for the Bobs lawsuit under the SPA; (4) any documents or communications relating to any assignment of OCTC rights to Plaintiff OCTSC; and (5) any documents or communications relating to the \$6 million threshold in the SPA used for Bob's litigation. These categories all specifically relate to the Bobs lawsuit and are relevant to the claim and defenses in this lawsuit.

Under the California Discovery Act, except limited by order of the court, “any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action...if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., §2017.010.) “For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement....’” (*Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546.) “Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action.” (Code Civ. Proc., § 2017.010.)

The categories of topics and production described in the subpoenas are reasonably particularized to seek information relevant to the claims in this case relating the reasonableness of Plaintiffs' allocation of damages and defense cost from the Bobs lawsuit. In a contractual indemnity action, “the indemnitee must show that liability is covered by the contract, that liability existed, and the extent thereof. A settlement [in the prior underlying action] is presumptive evidence of [indemnitor's] liability and the amount, but [this evidence] may be overcome by the indemnitor's proof that the settlement was unreasonable.” (*Peter Culley & Associates v. Superior Court* (1992) 10 Cal.App.4th 1484, 1497; Civ. Code, § 2778(5).) Also, as the court held in *Peter Culley, supra*, there is “no justification for giving presumptive effect to an allocation [of liability under the settlement] that is not the product of adverse negotiation,” and “[p]laintiff [in an action to enforce indemnity contract] should be required to prove the reasonableness of its proposed allocation by ordinary means.” (*Id.* at 1498.)

Here, Defendant is seeking to show that damages he is liable under the indemnification agreements should extend only as far as RATIC's liability to Bobs because OCTSC was not covered under the indemnity agreement. Defendant shows that past deposition testimony revealed that Plaintiffs' decision makers were personally obligated under the SPA to fund RATIC's and OCTSC's defense and settlement with Bobs that exceeded the \$6 million threshold. Hence, Defendant is claiming that, in order to seek reimbursement from payment sources only available through RATIC, the possessor of indemnification rights, Plaintiffs' decision makers were motivated to allocate all financial responsibility related to the Bobs lawsuit to RATIC. Furthermore, categories regarding assignment of rights from Orange Coast Title Company are relevant to the extent such assignment included the rights to indemnification under the at-issue 2019 indemnification agreement as Orange Coast Title Company is an indemnitee under the agreement. Plaintiffs are seeking to enforce indemnification rights possessed by RATIC as well as OCTSC on the basis that OCTSC is an assignee of such rights from Orange Coast Title who is referenced as an indemnitee under the agreement.

Although it may be true the subpoenaed information may be protected by privacy rights, a corporate entity's right to object to discovery based on right of privacy is limited. The extent of privacy rights over business entities is unsettled. (*SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal.App.4th 741, 755.) “Some opinions hold that the California Constitution protects only the privacy rights of human beings, other opinions hold that business entities have zones of privacy rights, and others assume without deciding that corporations enjoy a constitutional right of privacy.” [Citation.] (*Ibid.*) Even

in cases in which privacy protection in business entities is recognized, such right to privacy is not found in the constitution but “is a lesser right than that held by human beings and is not considered a fundamental right.” [Citation.] (*Ibid.*) “The discovery’s relevance to the subject matter of the pending dispute and whether the discovery appears reasonably calculated to lead to the discovery of admissible evidence is balance against the corporate right of privacy.” (*Ibid.*, internal quotation omitted.) “Doubts about relevance generally are resolved in favor of permitting discovery.” (*Ibid.*)

Here, as set forth above, relevancy of the subpoenaed information has been met. Despite the privacy rights involved, the relevance of such information balances in favor of disclosure. Any purported intrusion into corporate confidential information can be assuaged by redactions accompanied by a redaction log identifying the undisclosed portions with particularity and providing sufficient factual information for the requesting party (and the court) to evaluate the merits of the objection based on privacy rights.

The motion is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2302950	REAL ADVANTAGE TITLE INSURANCE COMPANY VS BARKER	MOTION TO COMPEL ANSWERS AT DEPOSITION AND PRODUCTION OF DOCUMENTS

Tentative Ruling:

Moving party: Defendant, Janice Barker, Special Administer of the Estate of Michale Barker, Deceased (“Defendant”)

Responding party: Plaintiffs, Real Advantage Title Insurance Company; Orange Coast Title Company of Southern California (“Plaintiffs”)

This is an action to enforce an indemnity agreement to recover damages which Plaintiffs allege to have suffered as a result of their settlement with a third party in a separate underlying action. In short, Plaintiffs were the escrow agent and title insurer in the closing transaction for a construction loan which Defendant Michael Barker (now deceased) obtained from the lender known as Bobs LLC (“Bobs”). Bobs conditioned the closing of the loan to the issuance of a policy of title insurance specifically underwritten to cover for any losses sustained by Bobs as a result of any mechanics’ lien claimed against the real property which was security for Barker’s loan obligation to Bobs under its deed of trust intended to be in first-lien priority. As part of the closing transaction, Defendant Barker (both in his individual capacity and representative of Sunniva Production Campus LLC), by an indemnity agreement dated March 5, 2018, agreed to indemnify, and hold harmless, RATIC against all losses, damages, and liabilities resulting from “any construction/mechanics’ lien or liens or claims to such lien or liens that RATIC may sustain or incur in any other action at law or equity under any theory of recovery as a result of the existence of a claim of right to a construction/mechanics’ lien or liens affecting the property.” (See Complaint, Ex. A.) Subsequently, by an indemnity agreement dated June 18, 2019, Defendant agreed to the same indemnity clause as to